

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Yomari Cruz as Mother and Natural Guardian to HF an :
Infant Under Eighteen (18) Years of Age,

: Index Number:
: Date Purchased:
: Date Filed:

Plaintiffs

: SUMMONS

-against-

:
City of New York, New York City Police Department,
Police Officer Lopez of the 40 Precinct and New York
City Police Officer John Doe, said name being fictitious
and presently unknown,

: Plaintiff's residence is:
: 3463 Third Avenue
: Bronx, NY 10456

Defendants

:

-----X
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose in Bronx County.

Dated: October 1, 2019
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC
Attorney for Plaintiffs
505 Eighth Avenue, Suite 1H
New York, NY 10018
(646) 256-1007

To: City of New York

New York City Police Department

Police Officer Lopez of the 40 Precinct

New York City Police Officer John Doe

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
Yomari Cruz as Mother and Natural Guardian to HF an :
Infant Under Eighteen (18) Years of Age, :
:
Plaintiffs : VERIFIED COMPLAINT
-against- :
City of New York, New York City Police Department :
and New York City Police Officer John Doe, said name :
being fictitious and presently unknown, :
:
Defendants :
-----X

Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,
alleges upon information and belief as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That all times hereinafter mentioned, Plaintiff, hereinafter referred to as "CRUZ" is a
resident of Bronx County, State of New York.

2. That all times hereinafter mentioned, HF, hereinafter referred to as "HF" is a
resident of Bronx County, State of New York.

3. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was
a municipal corporation duly existing under and by virtue of the laws of the State of New York.

4. That at all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was
a corporation doing business in the State of New York.

5. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, owned a certain police department in conjunction with its municipal functions.

6. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, operated said police department.

7. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, maintained said police department.

8. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, managed said police department.

9. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, supervised said police department.

10. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, controlled said police department.

11. That at all times hereinafter mentioned, the defendant THE CITY OF NEW YORK, hired, employed and/or furnished police officers to act as servants, agents, employees and/or representatives of the defendant THE CITY OF NEW YORK.

12. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was a municipal corporation duly existing under and by virtue of the laws of the State of New York.

13. That at all times hereinafter mentioned, the defendant, NEW YORK CITY POLICE DEPARTMENT, was a corporation doing business in the State of New York.

14. That at all times hereinafter mentioned, New York City Police Officer John Doe, (hereinafter referred to as "DOE") was employed by the New York City Police Department.

15. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and

NEW YORK CITY POLICE DEPARTMENT, maintained the 40 police precinct.

16. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, managed the 40 police precinct.

17. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, supervised the 40 police precinct.

18. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, controlled the 40 police precinct.

19. That at all times hereinafter mentioned, the defendant CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, hired, employed and/or furnished police officers to act as servants, agents, employees and/or representatives of the defendant NEW YORK CITY POLICE DEPARTMENT.

20. That on or about May 20, 2017, at approximately 7:00 PM in the vicinity of East 167 Street and Third Avenue, Clark Playground, Bronx, NY, HN was inside of a park located at the above address, when she and another female child engaged in a verbal argument.

21. That there was no physical altercation between HN and the other female child.

22. That HN left the park without any physical altercation.

23. That a short while later, HF, CRUZ and other members of their family were on their way to the CRUZ's mothers home and walked through the park.

24. That HF, CRUZ and the other members of their family observed a crowd of people and members of the NEW YORK CITY POLICE DEPARTMENT, including DOE.

25. That members of the NEW YORK CITY POLICE DEPARTMENT and DOES were

yelling for people to leave the park when the female child who HF had previously engaged in a verbal altercation, approached HF and attempted to strike her with a closed fist.

26. That DOE who witnessed the actions of said female child, rather than restrain said female child, intentionally shoved Plaintiff to the ground and stomped on Plaintiff's knee causing her to experience serious injury to her knee.

27. That at all times hereinafter mentioned, defendant DOE was acting in the course and scope of his employment as a police officer.

28. That at all times hereinafter mentioned, defendants DOE was acting in the course and scope of his employment as a police officer for the defendant THE CITY OF NEW YORK.

29. That at all times hereinafter mentioned, defendant DOE was acting in the course and scope of his employment as a police officer for the defendant NEW YORK CITY POLICE DEPARTMENT.

30. That at all times hereinafter mentioned, it was the duty of the defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, their servants, police officers, agents and/or employees to provide training and supervision to and of DOE.

27. That at all times hereinafter mentioned, it was the duty of the defendants, CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT, their servants, police officers, agents and/or employees to provide training and supervision to DOE in situations where victims are being attacked.

28. That at all times DOE acted in a manner that was wanton and maliciously disregarded the safety, protection and well-being of Plaintiff.

29. Upon information and belief, the above incident occurred because the unidentified police officers intentionally shoved Plaintiff to the ground and stomped because of the negligent

hiring, training, supervising and retaining of DOE who CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT knew or should have known was unfit to act as a police officer, in failing to ensure that the actions, activities, and behavior of its said servants, agents, police officers, detectives and/or employees conform to the certain standard of conduct established by the law for the protection of others against unreasonable risk of harm; in failing to ensure that its servants, agents, police officers, detectives, and/or employees conducted themselves in such a manner so as to not intentionally and wantonly result in injuries to others, including the claimant herein; in failing to properly train, supervise, manage, and discipline these officers which constitutes liability under 42 U.S.C. 1983, *Monell v. Department of Social Services of New York City*, 436 U.S. 658 (1978), as well as the State Law claims of negligent training, hiring, supervision, management and discipline; in that defendants developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in the County of New York, which caused the violation of plaintiff's rights; in that defendants inadequately and improperly investigated citizen complaints of police misconduct and instead tolerated such acts of misconduct; in failing to adequately supervise and train its servants, agents, police officers, detectives and/or employees, including the yet to be identified police officers herein, and thereby failed to adequately discourage further constitutional violations on the part of defendants' servants, agents, police officers, detectives and/or employees; that by reason of the above-described practices and customs of defendants, their servants, agents, police officers, detectives and/or employees, including yet to be identified police officers herein, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated and in otherwise being careless, reckless and negligent.

30. That the foregoing attack by DOE and resulting injuries to the Plaintiff were caused solely by reason of the intentional, wanton and willful disregard on the part of the defendants, and without any negligence on the part of the plaintiff contributing thereto.

31. That by reason of the foregoing, Plaintiff was severely injured and damaged, rendered sick, sore, lame and disabled, sustained severe nervous shock and mental anguish, great physical pain and emotional upset, some of which injuries are permanent in nature and duration, and plaintiff will be permanently caused to suffer pain, inconvenience and other effects of such injuries; plaintiff incurred and in the future will necessarily incur further hospital and/or medical expenses in an effort to be cured of said injuries; and plaintiff will be unable to pursue the usual duties with the same degree of efficiency as prior to this accident, all to plaintiff's great damage.

32. That by reason thereof, Plaintiff is entitled to recover for non-economic loss and for all economic losses sustained.

33. That on or about June 8, 2017 and within 90 days after the claim served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff, containing the name and post office address of the plaintiff and plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the defendant THE CITY OF NEW YORK, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

34. That on or about June 8 2017, and within 90 days after the claim served upon arose, the plaintiff caused a Notice of Claim, in writing, sworn to by the plaintiff, containing the name and post office address of the plaintiff and plaintiff's attorneys, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the

injuries claimed to have been sustained, to be served upon the defendant NEW YORK CITY POLICE DEPARTMENT, by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.

35. Thereafter, and on August 8, 2017, a hearing was held pursuant to notice given by defendant THE CITY OF NEW YORK and testimony was taken by said defendant at such hearing, which was duly transcribed and will be sworn to by plaintiff as required by law and thereafter filed in the office of the Comptroller of the City of New York.

36. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served on the said defendants.

37. That the defendants caused injuries to Plaintiff and refused and neglected to adjust, settle and pay same.

38. That this claim has been commenced and this action has been started within the statutory period of the happening of the event upon which the claim is based.

39. That all conditions and requirements precedent to the commencement of this action have been complied with.

40. That this action falls within one or more of the exceptions set forth in CPLR 1602.

41. Pursuant to CPLR Section 1602(2)(iv), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants owed the plaintiff a non-delegable duty of care.

42. Pursuant to CPLR Section 1602(7), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants acted with reckless

disregard of the safety of others.

43. Pursuant to CPLR Section 1602(6), defendants are jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that defendants should be held liable by reason of defendants' use, ownership or operation of a motor vehicle.

44. Pursuant to CPLR Section 1602(2)(iv), the defendant owner is jointly and severally liable for all of plaintiff's damages, including but not limited to plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that said defendant is vicariously liable for the negligent acts and omissions of the defendant operator of said vehicle.

45. This action arises under the United States Constitution, particularly under provisions of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly the Civil Rights Act, Title 42 of the United States Code, Section 1983 and the rights under the Constitution and laws of the State of New York.

46. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

47. That by reason of the foregoing, Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

AS AND FOR A SECOND CAUSE OF ACTION

48. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First Cause of Action of the within Complaint, with the same force and effect as though each were more fully set forth at length herein.

49. That this is an action to redress the deprivation under color of statute, ordinance, regulation, custom or usage of a right, privilege and immunity secured to the plaintiff by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States (42 U.S.C. Section 1983) and arising under the law and statutes of the State of New York.

50. Each and all of the acts of the defendants herein were done by the defendants, their servants, agents and/or employees, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as police officers of said City and State.

51. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in amounts to be determined upon the trial of this action.

AS AND FOR A THIRD CAUSE OF ACTION

52. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First and Second Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

53. That at all times herein mentioned, it was the duty of the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT to select and screen for hiring

for retention or discharge as employees those who are not fit, suitable, properly trained and instructed, constituting a potential menace, hazard or danger to the public or otherwise, those with vicious propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated for such employment.

54. That at all times herein mentioned, it was the duty of the said defendants to train, discipline, supervise, promulgate and put into effect appropriate rules applicable to the duties, activities and behaviors of their servants, agents, police officers, employees and/or personnel.

55. That by reason of the negligence of the defendants in their hiring, monitoring and retention of said employees with knowledge of the unsuitable, unstable and unfitness to act and serve and unfitness to continue to act and serve as employees by reason of the defendant's breach of said duties, the plaintiff WILBUR JEREZ was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing him extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

56. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in amounts to be determined upon the trial of this action.

AS AND FOR A FOURTH CAUSE OF ACTION

57. That plaintiff repeats, reiterates and realleges each and every allegation as contained in the First, Second and Third Causes of Action of the within Complaint with the same force and effect as though each were more fully set forth at length herein.

58. That at all times herein mentioned, it was the duty of the defendants, THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT, their servants, agents and/or

employees to supervise and entrust the use of their motor vehicles to suitable, competent, qualified, experienced, trained, diligent and adequate persons.

59. That at all times herein mentioned, it was the duty of the said defendants, their servants, agents and/or employees to properly and adequately supervise and ensure that their said motor vehicles were entrusted, for use and operation as a vehicle, to persons who were fit, suitable, properly trained and instructed.

60. That at all times herein mentioned, it was the duty of the said defendants, their servants, agents and/or employees to properly and adequately supervise and ensure that their said motor vehicles were not entrusted, for use and operation as a vehicle, to persons who constituted a potential menace, hazard or danger to the public or otherwise, those with unsuitable propensities and those with emotional, physical, psychological and/or physiological traits or characteristics or unsuitable or unstable or contraindicated to safely operate such vehicles.

61. That by reason of the negligence of the said defendants in negligently supervising and entrusting said motor vehicles to said operators, the plaintiff was caused to suffer severe injuries and damage, without fault or want of care on the part of the plaintiff in any way contributing thereto, thereby causing plaintiff extreme physical, mental and emotional illness and distress, as well as severe physical, mental and emotional injuries which are permanent in nature and duration.

62. That by reason of the foregoing, plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in amounts to be determined upon the trial of this action.

WHEREFORE, plaintiff demands judgment against the defendants, the amounts sought on each cause of action exceeding the monetary jurisdictional limits of any and all lower Courts

which would otherwise have jurisdiction herein, in amounts to be determined upon the trial of this action, together with the costs and disbursements of this action, and with interest from the date of this accident.

Law Offices of Jason A. Steinberger, LLC

Jason A. Steinberger Esq.

Attorney for Plaintiff

505 Eighth Avenue, Suite 1H

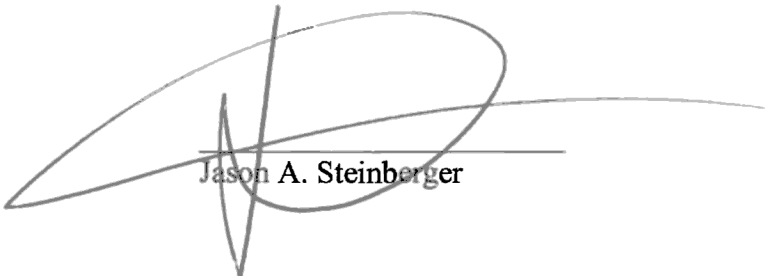
New York, NY 10018

(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: October 1, 2019



Jason A. Steinberger

**Index Number:
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

**YOMARI CRUZ AS MOTHER AND NATURAL GUARDIAN TO HF AN INFANT
UNDER EIGHTEEN (18) YEARS OF AGE,**

Plaintiff,

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER LOPEZ OF THE 40 PRECINCT AND NEW YORK CITY POLICE
OFFICERS JOHN DOE,**

Defendant.

SUMMONS AND COMPLAINT

LAW OFFICES OF JASON A. STEINBERGER, LLC

505 Eighth Avenue

Suite 701

New York, NY 10018

To:
Attorney (s) for Defendant(s)

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

that the within is a (certified) true copy of
entered in the office of the clerk of the within named Court on

**NOTICE
OF ENTRY**

**NOTICE OF
SETTLEMENT**

that an Order of which the within is a true copy will be presented for settlement to the Hon.
once of the Judges of the within named Court,

at
on

200 , at m.

Dated:

**JASON A. STEINBERGER, ESQ.
505 Eighth Avenue, Suite 701
New York, NY 10018**

To:
Attorney(s) for